(subsequently Sri Lanka) and Burma (now Myanmar) achieved independence and sovereign status. While the first phase of the scrapping of Acts tackled the last remaining statutes relating to the former East India Company, the second phase of the project centred on the Indian Railways system. Some thirty-eight railway Acts were repealed by the Statute Law (Repeals) Bill 2013.

Several small and big Acts had been in place since 1853, when the first passenger train in India was run by the Great Indian Peninsula Railway Company, to 1868, when significant British private investment led to the creation of a dozen or more large railway companies (and many smaller), with operations stretching across British India and Ceylon.

Post-1868, the railway network started to develop as a form of state enterprise, either through the government acquiring existing undertakings with the help of the guarantee-surrender mechanism, or by direct investment and construction. Formal transfer of operating assets was secured by a series of Railway Purchase Acts, which provided for the vesting of the relevant undertakings in the Secretary of State, and the termination of various contracts.

Additionally, the legislation would provide for an accumulating sinking fund (to be paid out as capital on the maturing of the fund), with different classes of annuity holder. Nationalization of the railway management did not occur until 1925.

The Indian Railway Annuities (Sinking Funds) Act 1909, related to the investment of sinking fund money for the railway companies, has long been obsolete. In each instance, the railway company was dissolved and the attached sinking fund distributed over the period 1948–1959. By the time of India’s and Pakistan’s independence in 1947, their railway infrastructure network had been fully nationalized by the government. Each of the Railway Company Purchase Acts (1879–1908) referred to in the 1909 Act has been repealed by the Statute Law (Repeals) Act 2013. [147]

A Few Repealed Acts

- The East Indian Railway Company Purchase Act 1879
- The Eastern Bengal Railway Company Purchase Act 1884
- The Scinde, Punjab and Delhi Railway Purchase Act 1886
- The Great Indian Peninsula Railway Purchase Act 1900